

Ramesh Chandra Kasera v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 April 2024 · 2024:AHC:58641-DB · Criminal Misc. Writ
Petition No. 5170 of 2024 · **Petition rejected; Special Court to conclude trial in four months.**

HEADNOTE

A Division Bench of the Allahabad High Court rejected a writ seeking to declare sections 135(2)(a)–(b) and 154(3) of the Electricity Act, 2003 inconsistent with the Cr.P.C., and clause 8.2 of the U.P. Electricity Supply Code, 2005 ultra vires. The 2003 Act is a special statute that borrows Cr.P.C. procedure for search and seizure; there is no inconsistency. The Special Court was directed to conclude the pending section 135 prosecution within four months.

FACTUAL SUMMARY

The Executive Engineer, Electricity Urban Distribution Division, Ram Bagh, Allahabad, searched the petitioners' premises at 312, Rani Mandi on 12 December 2020 under section 135 of the Electricity Act, 2003 and issued a provisional assessment the next day. They were later summoned by the Special Court, E.C. Act, Allahabad in Case Crime No. 4772 of 2020. They sought declarations that sections 135(2)(a)–(b) and 154(3) of the 2003 Act conflict with the Cr.P.C. and that clause 8.2 of the U.P. Electricity Supply Code, 2005 is ultra vires.

REUSABLE CONSTRUCTIONS

1. The Electricity Act, 2003 is a special statute that borrows Cr.P.C. procedure for search and seizure; section 135(2)(a) and (b) is not inconsistent with Cr.P.C. sections 47, 51, 94 and 100. ¶ 1-2
2. Clause 8.2 of the U.P. Electricity Supply Code, 2005 is not ultra vires the Cr.P.C.; a plea that section 154(3) summary trial of sections 135-139 conflicts with Cr.P.C. section 262(2) is unsustainable. ¶ 1-2

HOLDING-UNITS

INTERPLAY · EA2003::135

authorised-officer search and seizure vs Cr.P.C.

HOLDING

Section 135(2)(a) and (b), empowering the licensee's authorised officer to search and seize, is not inconsistent with Cr.P.C. sections 47, 51, 94 and 100. The Electricity Act, 2003 is a special Act that borrows Cr.P.C. procedure for search and seizure; the two are not at cross-purposes. The further plea that section 154(3) summary trial of sections 135–139 (punishable with up to three years) conflicts with Cr.P.C. section 262(2) (summary-trial imprisonment capped at three months) was rejected as lacking judicial understanding. ¶ 1-2

HOLDING-UNIT · UP-2005::8.2

clause 8.2 not ultra vires Cr.P.C.

HOLDING

The challenge that clause 8.2 of the U.P. Electricity Supply Code, 2005 is ultra vires because it 'hammers' the overriding effect of the Cr.P.C. was rejected as per se absurd. The writ was dismissed and the Special Court directed to conclude the section 135 case within four months. ¶ 1-2

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A Division Bench of the Allahabad High Court rejected a writ seeking to declare sections 135(2)(a)–(b) and 154(3) of the Electricity Act, 2003 inconsistent with the Cr.P.C., and

clause 8.2 of the U.P. Electricity Supply Code, 2005 ultra vires. The 2003 Act is a special statute that borrows Cr.P.C.. ¶ 1-2

clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment A Division Bench of the Allahabad High Court rejected a writ seeking to declare sections 135(2)(a)–(b) and 154(3) of the Electricity Act, 2003 inconsistent with the Cr.P.C., and clause 8.2 of the U.P. Electricity Supply Code, 2005 ultra vires. The 2003 Act is a special statute that borrows Cr.P.C.. ¶ 1-2